

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Purchased:

-----X
DIAVANA MARABOLI DESMAR,

Plaintiff designates

New York County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose

-against-

CITY OF NEW YORK, MARISA GONZALEZ, JOHN
MCCORMICK, "JANE" ALSTON, "JANE" FIGUEROA,
AND JOHN OR JANE DOE 1-10,

SUMMONS

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 1, 2021



SIM & DEPAOLA, LLP

BY: ATAUR RAQUIB, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 405

Bayside, New York 11361

(718) 281-0400

TO: **CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

MARISA GONZALEZ
Tax Id. No., 967889 and Shield No. 16303
c/o 13th NYPD Precinct
230 East 21st Street
New York, New York 10010

JOHN MCCORMICK
Tax Id. No., 956905 and Shield No. 5616
c/o 13th NYPD Precinct
230 East 21st Street
New York, New York 10010

“JANE” ALSTON
c/o 13th NYPD Precinct
230 East 21st Street
New York, New York 10010

“JANE” FIGUEROA
c/o 13th NYPD Precinct
230 East 21st Street
New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DIAVANA MARABOLI DESMAR,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, MARISA GONZALEZ, JOHN
MCCORMICK, "JANE" ALSTON, "JANE" FIGUEROA,
AND JOHN OR JANE DOE 1-10,Defendants.
-----X

Plaintiff, DIAVANA MARABOLI DESMAR, by her attorneys, Sim & DePaola, LLP,
for her complaint against the above Defendants, alleges as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress vis-à-vis sections 1981, 1983, 1985, 1986 and 1988, of title 42, of the United States Code, for the violation of her civil rights protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arose from an incident that occurred on June 1, 2020 in the vicinity of inside the building located at 119 5th Ave New York, New York when Defendants, acting under color of state law, unlawfully stopped, searched, seized, detained, and arrested Plaintiff without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause or any other legal justification to do so.
3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Diavana Maraboli-Desmar (“Ms. Marboli Desmar”) is an African American adult female who resides in Manhattan, New York.
5. The Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.
6. At all relevant times herein, the New York City Police Department (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.
7. At all relevant times herein, Defendant City, acting through its NYPD was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.
8. At all relevant times herein, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
9. At all relevant times herein, Defendant MARISA GONZALEZ (“GONZALEZ”) was a police officer, detective, supervisor, or policy maker employed by the NYPD, under Tax Id. No. 967899 and Shield No. 14406. Defendant GONZALEZ is currently assigned to the 13th Precinct.

10. At all relevant times herein, Defendant JOHN MCCORMICK (“MCCORMICK”) was a detective employed by the NYPD under Tax Id. No. 956905 and Shield No. 5616. Defendant MCCORMICK is currently assigned to the 13th Precinct.
11. At all times relevant herein, Defendant “JANE” ALSTON (“ALSTON”) was a police officer, detective, supervisor, policy maker and/or official employed by the NYPD. At this time, Plaintiff is not in possession of Defendant ALSTON’S first name and/or tax registry number. The name Jane is fictitious and meant as a place holder for Defendant ALSTON’S first name.
12. At all times relevant herein, Defendant “JANE” FIGUEROA (“FIGUEROA”) was a police officer, detective, supervisor, policy maker and/or official employed by the NYPD. At this time, Plaintiff is not in possession of Defendant FIGUEROA’S first name and/or tax registry number. The name Jane is fictitious and meant as a place holder for Defendant ALSTON’S first name.
13. At all times relevant herein, Defendants JOHN or JANE DOE 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.
14. At all times relevant herein, Defendants, including GONZALEZ, MCCORMICK, ALSTON, FIGUEROA, and JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants GONZALEZ, MCCORMICK, ALSTON, FIGUEROA, and JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
16. The names JOHN or JANE DOE 1–10 are fictitious and meant as placeholders for the Police Officers who violated the constitutional rights of Plaintiff despite possessing no legal basis to do so, as Defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense.
17. Within ninety (90) days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
18. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
19. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
20. This action and associated claims have been commenced within one-year-and-ninety-days after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response ongoing COVID-19 pandemic that tolled the statute of limitations for the period from March 20, 2020 to November 4, 2020.

FACTUAL CHARGES

21. On June, 1 2020, at approximately 9:30 p.m., in the vicinity of inside the building located at 119 5th Ave New York, New York, Plaintiff was caused to be illegally stopped, seize, searched and arrested by Defendants, including GONZALEZ, MCCORMICK, ALSTON, FIGUEROA and JOHN OR JANE DOE 1-10.
22. Plaintiff, at said date and time of the incident, was lawfully present on the sidewalk of 5th Ave.
23. Plaintiff had not committed any crimes or violations of the law nor was there any indication of such.
24. Plaintiff, prior to the incident in question, was in observance and attendance of a civil rights protest with a large crowd marching down the street of 5th Ave towards uptown.
25. Plaintiff, prior to the incident in question, was walking down the street of 5th Ave when multiple unidentified individuals of the large crowd began to smash the windows of buildings adjacent to 5th Ave.
26. Plaintiff, in response, then separated herself from the large crowd and made her way to the sidewalk of 5th Ave within the vicinity of the building located at 119 5th Ave New York, New York when additional unidentified individuals from the large crowd began to smash the windows of said building, enter its premises, and loot items from a store located on its first floor.
27. As a result of the actions of said unidentified individuals, the floor of said building was covered with countless glass shards and pieces.

28. Plaintiff, at said date and time of incident, then turned her attention to and began to observe said unidentified individuals smashing the windows and entering the premises of said building from her lawful presence on the sidewalk outside.
29. Defendants, including MCCORMICK and JOHN DOE 1, then approached Plaintiff in plain clothes as she was lawfully present on the sidewalk outside said building.
30. Plaintiff, unaware of Defendants MCCORMICK and JOHN DOE 1 as they approached, was then caused to be battered and assaulted by them, as Defendant MCCORMICK aimed his handgun directly at Plaintiff and Defendant JOHN DOE 1 rammed his baton repeatedly into Plaintiff's groin while forcibly demanding she enter said building against her will.
31. Plaintiff, while being forced to enter said building by Defendants MCCORMICK and JOHN DOE 1, was caused to be battered and assaulted yet again, when JOHN DOE 2 approached her person and slammed her face down on the floor inside said building, of which was still covered with countless glass shards and pieces.
32. As a result of the above assault and battery by Defendants, including MCCORMICK and JOHN DOE 1-2, Plaintiff received substantial injury to her groin, limbs, and body.
33. Defendant JOHN 1 then physically restrained and illegally arrested Plaintiff face down on the floor, by shoving his handgun into her spine and contorting her arms behind her back to which he affixed metal handcuffs in an excessively tight fashion as Defendant MCCORMICK pointed his handgun at Plaintiff's head.
34. Plaintiff complained she could not breathe while Defendants MCCORMICK and JOHN 1 physically restrained and illegally arrested her.

35. Defendant FIGUEROA then approached Plaintiff and illegally searched her person and backpack, found items that could not be attributed to the store of said building.
36. Plaintiff was then taken by Defendants, including MCCORMICK, FIGUEROA, and JOHN or JANE DOE 1-10, outside of the building located at 119 5th Ave, New York, New York.
37. Defendant ALSTON then approached Plaintiff and illegally searched her person a second time.
38. Defendants, including MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, then transported Plaintiff against her will to the 13th NYPD Precinct.
39. Defendants, including MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, then accused Plaintiff of a criminal offense.
40. Defendant GONZALEZ, who did not observe Plaintiff commit a crime nor present at the scene of the alleged crime then filed the arrest report.
41. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, did not observe Plaintiff commit a crime or observe her in possession of any contraband.
42. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, lacked any probable cause or reasonable suspicion arrest Plaintiff, because Defendants never observed Plaintiff commit any crime or violation of the law.
43. Due to the lack of probable cause for the seizure of Plaintiff's person, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants.

44. Prior to Plaintiff being arraigned in criminal court, GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN OR JANE DOE 1-10, signed, attested and filed the criminal court complaint against Plaintiff which falsely accused Plaintiff of a criminal offense and other related charges.
45. Defendants, including, GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, knowingly, maliciously and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which Defendants falsely attributed to Plaintiff before forwarding to prosecutors.
46. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, engaged in fraud, the suppression of evidence, perjury, the gross deviation from acceptable police conduct and other conduct undertaken in bad faith.
47. Plaintiff asserts that Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, falsely arrested, wrongfully detained, and maliciously prosecuted Plaintiff with the full knowledge that she had committed no crimes or violations of the law.
48. Plaintiff, therefore, asserts that due to the clear absence of any viable probable cause to warrant her criminal prosecution, at any point, she was denied her rights to fair trial and due process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceeding was irrefutably terminated in favor of Plaintiff when all charges were outright dismissed and sealed on the merits on December 2, 2020 pursuant to section 160.50 of the New York Criminal Procedure Law.

49. As a result, Plaintiff was caused to be unlawfully, involuntarily, and continuously detained by defendants, including JOHN or JANE DOE 1-10, over the course of three days, until her release from physical custody on June 4, 2020.
50. At all times relevant hereto, the Defendants, including, GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, were involved in the decision to stop, seize, and arrest Plaintiff without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.
51. At all times relevant hereto, the Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.
52. Defendant City and the individually named police officers herein, have engaged in a policy, custom, or pattern and practice of illegally stopping, searching, arresting and criminally prosecuting African Americans due solely to their impermissible and uncorroborated belief that such presence is tantamount to the commission of such suspected criminality.
53. Plaintiff asserts that the aforementioned unlawful acts committed by Defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD in particular.
54. Plaintiff asserts that Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, illegally approached, stopped, detained, searched, and then falsely arrested her, due solely to their racially

discriminatory prejudices against African Americans, their intent to use the instant arrest as leverage against Plaintiff, so that they would provide Defendants with information regarding Defendants' true and only suspects, or other unrelated crimes or criminal suspects, or their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

55. Plaintiff further asserts that Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumptions that Plaintiff would be able provide said Defendants with information pertaining to unrelated criminal activity or suspects, solely because of her status as an African American female.

56. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, arrested Plaintiff, because of their racially discriminatory beliefs, which compelled Defendants to equate to Plaintiff's respective race, ethnicity or national origin to criminal guilt or criminal knowledge.

57. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations and biases, namely the stop, detainment, search, assault, battery, seizure, and arrest of Plaintiff, despite possessing no evidence, credible or otherwise, to justify such conduct.

58. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, and

arrested Plaintiff, due solely to Defendants' perception or consideration of Plaintiff's respective race, ethnicity, national origin, sex, gender or age.

59. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, and arrested Plaintiff, because of their improper and pernicious desires to prevent Plaintiff from exerting her First Amendment rights to engage in protected speech and activities, such as Plaintiff's refusal to yield to Defendants' unreasonably coercive demands to utter false confessions or assist defendants in the fabrication of evidence against Defendants' true suspects or other persons of interest.
60. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, possessed no valid reason to approach, stop, question, search or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from Defendants' unjust motivations or proclivities, including Defendants' invidious and biased based discriminatory predilections against African Americans, such as Plaintiff, Defendants' desire to retaliate, punish or otherwise penalize Plaintiff for her refusal to submit to the will of Defendants by answering questions to the satisfaction of Defendants.
61. Defendants, including JOHN or JANE DOE 1-10, subjected Plaintiff to disparate treatment compared to other White or Asian individuals similarly situated, because Defendants did not stop, accuse, search, seize, arrest or cause criminal prosecutions to be initiated against any White or Asian pedestrians, who were engaged in activity identical or substantially similar to the kind that resulted in the illegal search, seizure,

detention of Plaintiff, namely standing on a sidewalk while in full obedience of all local, state and federal rules, regulations, statutes and laws.

62. Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest Plaintiff by personally conferring with each other, regarding the suppression of exculpatory evidence.

63. Plaintiff asserts that the Defendants, including GONZALEZ, MCCORMICK, FIGUEROA, ALSTON, and JOHN or JANE DOE 1-10, who violated her civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, including the individually named Defendants herein.

64. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

65. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.
66. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

67. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.
68. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”
69. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.
70. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small

percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

71. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

72. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies

resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

73. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by CINDY Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.
74. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

75. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrests without probable cause.
76. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
77. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.
78. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

79. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.
80. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10.
81. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

82. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.
83. The aforementioned acts of Defendants, including the City, and GONZALEZ, MCCORMICK, FIGUEROA, ALSTON and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Ms. Mariboli Desmar's rights, as enumerated and set forth by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
84. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of their liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth herein.
86. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

87. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.
88. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of her liberty and the initiation of criminal charges against her.
89. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.
90. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by Defendants.
91. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of respondeat superior.
92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

93. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
94. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

95. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.
96. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of her liberty and the initiation of criminal charges against her.
97. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities, or by chilling her desire to further participate or engage in such protected speech or activities.
98. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.
99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth herein.
101. Defendants subjected Plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
102. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.

103. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.
104. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.
105. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.
106. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of respondeat superior.
107. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

108. The above paragraphs are here incorporated by reference as though fully set forth herein.
109. Defendants subjected Plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
110. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.
111. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

112. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

113. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

115. The above paragraphs are here incorporated by reference as though fully set forth herein.

116. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

117. Plaintiff was conscious of her confinement.

118. Plaintiff did not consent to her confinement.

119. Plaintiff's arrest and false imprisonment was not otherwise privileged.

120. Defendant City of New York, as employer of individual Defendants, is responsible for their wrongdoings under the doctrine of respondeat superior.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

122. The above paragraphs are here incorporated by reference as though fully set forth herein.

123. At all relevant times, Defendants caused Plaintiff to fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

124. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without her consent or justification.

125. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

127. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

128. The above paragraphs are hereby incorporated by reference as though fully set forth.

129. Defendants caused Plaintiff's fear for her physical well-being and safety and placed her in apprehension of immediate harmful or offensive touching.

130. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without her consent or other legal justification therefor.

131. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

132. As a direct and proximate result of this breach, Plaintiff sustained the damages
hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

133. The above paragraphs are here incorporated by reference as though fully set forth
herein.

134. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth

Amendments, because they used unreasonable force without Plaintiff's consent.

135. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive
touching and battered her without her consent.

136. As a direct and proximate result of this breach, Plaintiff sustained the damages
hereinbefore alleged.

NINTH CAUSE OF ACTION

Violations of Victims of Violent Crime Protection Act Under
New York City Law

137. The above paragraphs are here incorporated by reference as though fully set forth
herein.

138. Defendants' acts or series of acts constituted the commission of a misdemeanor or
felony against Plaintiff, as defined in state or federal law, which presented a serious
risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in
criminal charges, prosecutions or convictions.

139. Accordingly, Defendants committed crimes of violence against Plaintiff and
violated her rights, pursuant to section 10-403 of the Administrative Code of the City
of New York.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

1. The above paragraphs are here incorporated by reference as though fully set forth herein.
2. Defendants initiated the prosecution against Plaintiff.
3. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
4. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
5. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
6. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.
7. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
8. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

9. The above paragraphs are here incorporated by reference as though fully set forth herein.
10. Defendants initiated the prosecution against Plaintiff.
11. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
12. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
13. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
14. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.
15. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

16. The above paragraphs are hereby incorporated by reference as though fully set forth.
17. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff to compel the compliance or forbearance of some act.
18. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiff, especially in the absence of any cognizable probable cause.
19. Defendants intended to inflict substantial harm upon Plaintiff.

20. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.
21. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
22. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

23. The above paragraphs are hereby incorporated by reference as though fully set forth.
24. Defendants arrested, detained and caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
25. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.
26. Defendants intended to inflict substantial harm upon Plaintiff.
27. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.
28. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.
29. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION**Denial of Right to Due Process Under
New York State Law**

30. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
31. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.
32. Defendants forwarded said fabrications and false information to prosecutors.
33. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following their arraignment in criminal court.
34. Accordingly, Defendants violated Plaintiff's rights to due process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and Article II, Section 12, of the New York Civil Rights Law.
35. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
36. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION**Denial of Right to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants**

37. The above paragraphs are here incorporated by reference as though fully set forth herein.
38. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

39. Defendants forwarded said false information to prosecutors within the District

Attorney's Office.

40. Defendants' actions resulted in post-arraignment restrictions and deprivations upon

Plaintiff's liberty and freedom of movement.

41. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Fourth,

Fifth, Sixth and Fourteenth Amendments to United States Constitution.

42. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the

damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

43. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

44. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

45. Accordingly, Defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

46. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

47. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION**Deprivation of Rights & Denial of Equal Protection of the Law Under
New York State Law**

48. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
49. Plaintiff, as an African American female, is a member of a racial minority and protected class.
50. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.
51. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.
52. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
53. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
54. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.
55. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
56. Accordingly, Defendants violated Plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

57. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

58. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

59. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

60. Plaintiff, as an African American female, is a member of a racial minority and protected class.

61. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

62. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

63. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

64. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

65. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

66. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

67. Accordingly, Defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.
68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

70. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
71. Defendants engaged in a conspiracy against Plaintiff to deprive her of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of her liberty or property without Due Process of law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.
72. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.
73. As a result, Plaintiff sustained injuries to her person, was deprived of her liberty, rights or privileges as a citizen of the United States.
74. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of her civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

75. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.
76. Accordingly, Defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.
77. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
78. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

79. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
80. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
81. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

83. The above paragraphs are here incorporated by reference as though fully set forth herein.
84. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
85. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

87. The above paragraphs are hereby incorporated by reference as though fully set forth.
88. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.
89. Defendant City breached those duties of care.
90. Defendant City placed the individually named Defendants herein in a position where they could inflict foreseeable harm.
91. Defendant City knew or should have known of the individual named Defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

92. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

93. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

94. The above paragraphs are here incorporated by reference as though fully set forth.

95. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

96. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

97. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

98. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its

policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

99. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

100. Defendant City's conduct caused Plaintiff to be deprived of her civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; Together with the costs and disbursements of this action.

Dated: Bayside, New York
November 1, 2021



SIM & DEPAOLA, LLP
By: ATAUR RAQUIB, *Esq.*
Attorneys for Plaintiff
4240 Bell Blvd., Suite 405
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Ataur Raquib**, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 1, 2021


ATAUR RAQUIB, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DIAVANA MARABOLI DESMAR,

Plaintiff,

-against-

CITY OF NEW YORK, MARISA GONZALEZ, JOHN MCCORMICK, "JANE" ALSTON,
"JANE" FIGUEROA, and JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: Ataur Raquib
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for